The Indian legal system under the British was based on the concept of equality before law. This meant that in the eyes of the law all men were equal. The same law applied to all persons irrespective of their caste, religion, or class. Previously, the judicial system had paid heed to caste distinctions and had differentiated between the so-called high-born and low born. For the same crime lighter punishment was awarded to a brahmin than to a non-brahmin. Similarly, in practice zamindars and nobles were not judged as harshly as the commoner. In fact, very often they could not be brought to justice at all for their actions. Now the humble could also move the machinery of justice.

There was, however, one exception to this excellent principle of equality before law. The Europeans and their descendants had separate courts and even laws. In criminal cases they could be tried only by European judges. Many English officials, military officers, planters and merchants behaved with Indians in a haughty, harsh, and even brutal manner. When efforts were made to bring them to justice, they were given indirect and undue protection, and consequently light or no punishment, by many of the European judges before whom alone they could be tried. Consequently, there was frequent miscarriage of justice.

In practice, there emerged another type of legal inequality. Justice became quite expensive as court fees had to be paid, lawyers engaged, and the expenses of witnesses met. Courts were often situated in distant towns. Lawsuits dragged on for years. The complicated laws were beyond the grasp of the illiterate and ignorant peasants. Invariably, the rich could turn and twist the laws and courts to operate in their own favour. The mere threat to take a poor person through the long process of justice from the lower court to the highest court of appeal and thus to face him with complete ruin often sufficed to bring him to heel. Moreover, the widespread prevalence of corruption in the ranks of the police and the rest of the administrative machinery led to the denial of justice. Officials often favoured the rich. The zamindars oppressed the *ryots* without fear of official action. In contrast, the system of justice that had prevailed in pre-British times was comparatively informal, speedy and inexpensive. Thus, while the new judicial system marked a great step forward insofar as it was based on the laudable principles of